

Yashpal v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 6 December 2024 · 2024:AHC:191580-DB · Writ-C No. 30100 of 2024 · **New connection directed on payment of clause 4.39 charges.**

HEADNOTE

Permanent disconnection before payment under a one-time settlement does not restore supply on those payments alone. Section 4.39 of the Uttar Pradesh Electricity Supply Code, 2005 requires the charges for a new connection. If the consumer pays within six weeks and completes the formalities, the licensee must give the new connection within two weeks.

FACTUAL SUMMARY

Yashpal's electric connection was permanently disconnected by an order dated 29 April 2023. After a one-time settlement scheme was brought out, he made payments and filed a writ under Article 226 seeking an electric connection. Respondent no. 3 told the Allahabad High Court that it had no objection to a connection if he paid the charges for a new connection required to be installed after the permanent disconnection.

REUSABLE CONSTRUCTIONS

1. Payments under a one-time settlement made after permanent disconnection do not revive the old connection; section 4.39 of the U.P. Electricity Supply Code, 2005 requires the consumer to take a new connection and pay the charges for it. ¶ 4-5
2. Once the consumer pays the new-connection charges and completes the formalities within six weeks, the licensee must release the new connection within two weeks of full payment. ¶ 5

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.39

New-connection charges after permanent disconnection preceding a one-time settlement

HOLDING

Because the permanent disconnection was made before the one-time settlement, later payments under that scheme do not restore the old supply. Under section 4.39 of the Uttar Pradesh Electricity Supply Code, 2005, the consumer must pay the charges for the new connection required after permanent disconnection. If he pays within six weeks of the order and completes all formalities, the authorities must provide the new connection within two weeks of full payment. ¶ 4-5

PRINCIPLE TAGS

new-connection-charges-after-pd-despite-ots The Court applied section 4.39 to hold that one-time settlement payments made after permanent disconnection do not restore the old connection, and directed a new connection only after those charges are paid. ¶ 4-5